

Court No. - 3

Case :- WRIT - C No. - 9606 of 2023

Petitioner :- Jyoti Kandhari

Respondent :- U.P. Power Corporation Ltd. Lko. Thru.
Chairman And Others

Counsel for Petitioner :- Pritish Kumar

Counsel for Respondent :- Amit Kumar Dwivedi

Hon'ble Vivek Chaudhary,J.

Hon'ble Manish Kumar,J.

Heard learned counsel for the parties and gone through the record.

Petitioner has approached this Court claiming that despite having applied for the electricity connection at shop/premises at 4, Shivam Nagar part of Khasra no. 2319 situated at village- Kanausi, Pargana Tehsil & District Lucknow, respondent authorities are not providing such electricity connection.

Mr. Manish Jauhari, learned counsel for the respondent states that there is a dispute with regard to ownership of the said property between the petitioner and U.P. Power Corporation.

Admittedly, the U.P. Power Corporation has lost the suit filed by the petitioner.

Now at this time, the U.P. Power Corporation has filed a suit, which is pending before the court concerned and admittedly no interim order is granted. There appears no reason for the respondent-Corporation to refuse the electricity connection to the petitioner.

In the given circumstances, petitioner is permitted to provide indemnity bond under Annexure 4.2 of the U.P. Electricity Supply Code, 2005.

Petitioner is permitted to provide such an indemnity bond before the respondent no. 3-Executive Engineer, EUDD-Kanpur Road, LESA Lucknow.

On providing the said indemnity bond, the respondent no. 3-Executive Engineer, EUDD-Kanpur Road, LESA, Lucknow shall ensure that electricity connection is provided to the petitioner within a period of two weeks thereafter.

It goes without saying that the parties shall be bound by

the orders/judgments passed in the suit, pending before the court concerned.

Writ petition is disposed of accordingly.

(Manish Kumar, J.) (Vivek Chaudhary, J.)

Order Date :- 2.11.2023

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